

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

June 22, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

In conjunction with the recent annual Wyoming Association of Municipalities (WAM) convention, Mayor Kaysen recognized and presented 15 WAM Innovation Awards to representatives of the following City departments: Planning, Parks and Recreation, Engineering, Metropolitan Planning Organization, and Public Works.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Case, and pursuant to support received by Mr. Collins and Mr. Pierson, agenda item #7 was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON JUNE 8, 2009. Motion (per Consent Agenda) carried.

MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON JUNE 15, 2009. Mr. Spiker moved to approve, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM SPECIAL SESSION OF THE GOVERNING BODY ON JUNE 16, 2009. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body.

"AN ORDINANCE AMENDING CERTAIN CHAPTERS AND SECTIONS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE BY CHANGING THE DEFINITION OF OFF-PREMISE SIGN IN SECTION 17.04.040, DEFINITIONS, SIGNAGE, AND BY ADDING ADDITIONAL LANGUAGE TO SECTION 17.128.090 G., OFF-PREMISE SIGNS." Mr. Collins and Mr. Valdez each declared a conflict of interest (property ownership involving leasing of

billboards) for this as well as the next agenda item, and vacated Council Chambers. Ed Strader spoke in opposition to the ordinance, expressed concerns with a billboard located near an apartment dwelling, commenting on light pollution and effect on tenants due to the lighted billboard; distance of billboards from streets, rights-of-way and greenway paths, and suggested removal of certain billboards. Frank Cole expressed his opinion that street rights-of-way should be excluded in the distance measurement for placement of billboards, and commented on concerns with billboards near any type of residential use zones. Reporting for Public Services Committee, Mr. Brown stated there was no recommendation on the item from Committee. Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Upon inquiry, Matt Ashby, Planning Services Director, stated the current draft of the proposed Unified Development Code does not address a section on billboards and that whatever is decided by the governing body will be incorporated, and Pat Crank, attorney with Speight, McCue and Crank law firm, representing NextMedia, advised decisions have not yet been made regarding placement sites of digital vs. paper billboards. Discussion followed regarding placement of billboards in proximity to apartments/residential use areas, and purpose of the ordinance amendment, which is to correct language pertaining to the definition of off-premise signs due to a 2006 amendment. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers with the exception of Ms. Case and Dr. Rinne voting “no”. (#3858)

“AN ORDINANCE AMENDING CHAPTERS 17.04 INTRODUCTORY PROVISIONS AND DEFINITIONS AND 17.128 SIGNS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE 2002.” Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Upon inquiry, Martin Matsen, Development Director, provided information on the 150 linear ft. distance for placement of billboards from single family residential properties as proposed in Sec. 17.128.010, G., stating if someone applied for a sign permit a plot plan would be required to reflect the distance from the property line of the closest residence to the proposed sign pillar, and explained the use is different than for a multi-family residence. He confirmed that duplexes and townhomes are not considered single family residences and if a single family residence is located within a CB (commercial business) zone and billboards are allowed, the residence would not be afforded the 150 ft. distance protection. Upon inquiry, Pat Crank, attorney with Speight, McCue and Crank law firm, representing NextMedia, advised NextMedia would consider and analyze any request from a neighbor involving night time light pollution. He stated digital billboards are less likely to present light pollution issues. Comments followed on neighborhood light pollution concerns, and extending the 150 ft. distance protection to those zones containing residential housing uses. Dr. Rinne moved to amend Sec. 17.128.010, G. to include duplexes and townhouses, seconded by Ms. Ash. Upon inquiry regarding the amendment, Mr. Crank clarified his client would be acceptable to the amendment, and stated that duplexes and townhouses are specifically defined in city code. Comments followed in support of the amendment. Motion to amend carried. Voting “yes” – all members of the governing body present in Council Chambers. Upon inquiry regarding placement of billboards near apartment buildings, Mr. Crank responded with information concerning limited viable commercial billboard locations relative to the 150 ft. buffer zone restriction and desired high volume visibility of signs for the benefit of sign advertisers and for public safety messages. He also discussed the net reduction in the number of his client’s billboards if the ordinance is approved. Main motion as amended carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Collins and Mr. Valdez returned to Council Chambers. (#3859)

“AN ORDINANCE AMENDING ORDINANCE NO. 3814 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR NON-UNIFORMED EMPLOYEES OF THE CITY OF CHEYENNE.” Reporting for Finance Committee, Mr. Valdez moved to approve on third and final reading, seconded by Ms. Ash. Motion carried. Voting “yes” – all members of the governing body. (#3860)

“AN ORDINANCE AMENDING ORDINANCE NO. 3815 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR SWORN OFFICERS OF THE CHEYENNE POLICE DEPARTMENT.” Mr. Valdez moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body. (#3861)

“AN ORDINANCE AMENDING CHAPTER 2.36, BUILDING DEPARTMENT, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF CHEYENNE CITY CODE, PERTAINING TO THE AUTHORITY OF THE CITY’S CHIEF BUILDING OFFICIAL AND BUILDING DEPARTMENT STAFF, AND PROVIDING FOR VIOLATION.” Mr. Brown moved to approve on third and final reading, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body. (#3862)

“AN ORDINANCE AMENDING CHAPTER 5.44, CONTRACTORS, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF CHEYENNE CITY CODE, PERTAINING TO THE MEMBERSHIP AND MEETINGS OF THE CONTRACTOR LICENSING BOARD.” Mr. Brown moved to approve on third and final reading, seconded by Ms. Case. Mr. Brown moved to amend by substitute, seconded by Mr. Collins. It was advised the substitute removes the words “inefficiency, such as”; strikes the sentence “The governing body may investigate and recommend removal if a member misses two consecutive regular meetings”, and strikes the sentence “Meeting expenses will be paid by the City.”. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. (#3863)

“AN ORDINANCE AMENDING, CREATING, DELETING AND RE-CREATING VARIOUS CHAPTERS AND SECTIONS WITHIN TITLE 15, BUILDINGS AND CONSTRUCTION, OF THE CHEYENNE CITY CODE, RELATING TO GENERAL PROVISIONS, AND ADOPTION OF THE INTERNATIONAL BUILDING CODE AND OTHER RELATED CODES, 2006 EDITION, AND THE NATIONAL ELECTRICAL CODE, 2008 EDITION 2010.” Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body. (#3864)

“AN ORDINANCE AMENDING CHAPTER 8.12, OF TITLE 8, HEALTH AND SAFETY, OF THE CHEYENNE CITY CODE, RELATING TO THE ADOPTION OF THE INTERNATIONAL FIRE CODE, 2006 EDITION.” Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body. (#3865)

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LI

LIGHT INDUSTRIAL DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR LOT 1, BLOCK ONE, PAT GRIFFIN PARK AND FROM LI LIGHT INDUSTRIAL DISTRICT TO P PUBLIC DISTRICT FOR LOT 2, BLOCK ONE, PAT GRIFFIN PARK, CHEYENNE, WYOMING (LOCATED WEST OF THE INTERSECTION OF MISSILE DRIVE AND WESTLAND ROAD).” Mr. Brown moved to approve on second reading with staff recommendations #1 through 4, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF NORTHWEST QUARTER OF THE SOUTHWEST QUARTER (NW 1/4 SW 1/4) OF SECTION 20, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING (GENERALLY DESCRIBED AS FOLLOWS: A TRACT OF LAND LOCATED EAST OF POWDERHOUSE ROAD, NORTH OF AND ADJACENT TO LIFE CARE CENTER)” -- referred to Public Services Committee (sponsor - Mr. Brown).

“A RESOLUTION RE-APPROPRIATING THE FISCAL YEAR 2009 BUDGET OF THE CITY OF CHEYENNE ACCORDING TO THE PROVISIONS OF W.S. §16-4-112 AND §16-4-113.” Mr. Valdez moved to adopt, seconded by Ms. Broyles. Mr. Valdez moved to amend by allocating \$25,000.00 from FY2009 City Council professional services fund to FY2010 Art in Public Places fund, seconded by Ms. Broyles. Upon inquiry, City Treasurer Barb Dorr advised as of May 31, 2009, the balance in the Art in Public Places (AIPP) account was \$51,312.00. Pursuant to discussion on the remaining balance in the AIPP fund, Rick Parish, Parks and Recreation Director, clarified the most recent piece of art has been commissioned and the funding will come out of the remaining AIPP fund balance. Comments included FY2010 budget reduction areas; other types of art medians that could be utilized in the community, other than sculptures, which are not as expensive; lack of FY2010 funding for AIPP and effect on the AIPP Committee, and the re-appropriation of funding from the current fiscal year to the next budget year. Upon inquiry, Ms. Dorr advised as of May 31, 2009, the Council’s professional services fund balance was approximately \$6,765.00, and Kris Jones, Executive Assistant to City Council, advised that a recent communication with Accounting reflected an estimated balance of \$39,000.00 in the Council’s professional services line item. Comments followed on the difference in balance amounts in the professional services line item as reported by Ms. Dorr and Ms. Jones. During ensuing discussion, Ms. Dorr offered to provide a review of the line item to ascertain the correct amount of the fund’s balance prior to the end of the evening’s meeting. She suggested the funding source could instead come from the FY2009 general contingency fund. Mr. Collins moved to amend the amendment to allocate \$25,000.00 out of FY2009 general contingency funds instead of the City Council professional services account, seconded by Ms. Broyles. Upon request, Ms. Dorr advised estimated funds to be submitted by departments at budget year-end will be minimal, and reviewed the re-appropriation process. In conjunction with comments regarding the status of the AIPP Committee if funding is not received for the next fiscal year, Mayor Kaysen clarified the Committee will continue to meet to plan for artwork contributions in the community, and stated he had visited with the Committee chair regarding lack of funding for the next fiscal year due to budgetary restrictions. Further discussion followed. Motion to amend the amendment carried. Voting “yes” – Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Voting “no” – Ms. Ash, Mr. Pierson and Mr. Spiker. Discussion continued on support for the AIPP program, funding cut-backs made during FY2010 budget preparation, and the City’s overall financial picture. During comments, Ms. Dorr clarified that during the FY2010 budget preparation, the following areas were

affected by the elimination of funding: Allocation to Parks infrastructure fund; Jeff Ziebart contract; employee bonuses, and the AIPP. Ms. Broyles raised a point of clarification questioning the motion on the floor with Mayor Kaysen advising the pending motion is to approve the initial amendment as amended to reflect allocation of \$25,000.00 from the FY2009 general contingency fund, instead of from the Council's professional services line item, to FY 2010 Art in Public Places line item. Ms. Broyles moved to amend to allocate \$25,000.00 from Council's FY2009 professional services line item and requested verification of an accurate balance amount in the Council's professional services fund. To allow Ms. Dorr and Ms. Jones time to research and determine the actual balance amount, Mayor Kaysen advised the agenda item would be tabled until the end of the meeting agenda, prior to other City business. Mayor Kaysen removed the item from the table following reading of the announcements section on the meeting agenda. Ms. Dorr clarified there is \$6,000.00 currently in Council's professional services account and that the balance amount recently provided to Ms. Jones was in error. Ms. Broyles withdrew her motion to amend. Motion to amend as amended failed. Voting "yes" – Ms. Broyles and Mr. Collins. Voting "no" - Ms. Ash, Mr. Brown, Ms. Case, Mr. Pierson, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Upon further query on notable items contained in the re-appropriation, Ms. Dorr advised a recently received invoice for the Downtown Development Authority's 2008 TIF (tax increment financing) in the amount of \$477,156.00 was included, which will leave a general fund reserve balance of about \$7,000,000.00, and provided an explanation of how the TIF payment affects reserves. Main motion carried. Voting "yes" – all members of the governing body. (#5142)

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR PAT GRIFFIN PARK, A REPLAT OF LOTS 3 & 4, BLOCK 2, GRIFFIN ADDITION; LOT 1, BLOCK 2, REPLAT OF WESTLAND SUBDIVISION; A PORTION OF LOT 1, BLOCK 1, REPLAT OF WESTLAND SUBDIVISION; A PORTION OF VACATED COUNTY ROAD 51; A PORTION OF THE GOVERNMENT LOT 5 OF SECTION 36, T.14N., R.67W., 6TH P.M., AND A PORTION OF FORMER D.A. RUSSELL MILITARY RESERVATION, CHEYENNE, WYOMING (LOCATED WEST OF THE INTERSECTION OF MISSILE DRIVE AND WESTLAND ROAD)" -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] "A RESOLUTION WHEREBY THE GOVERNING BODY OF THE CITY OF CHEYENNE AUTHORIZES A SPECIAL CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT ELECTION AS PROVIDED BY WYO. STAT. §15-9-217 (B) AND (C) WHICH, UPON AFFIRMATIVE MAJORITY VOTE OF THE QUALIFIED VOTERS WITHIN THE DISTRICT, WILL REAUTHORIZE A SPECIAL ASSESSMENT OF TEN (10) MILLS UPON NON-RESIDENTIAL COMMERCIAL PROPERTIES WITHIN THE DISTRICT FOR A PERIOD OF FOUR (4) YEARS" -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] "A RESOLUTION CERTIFYING THAT THE GOVERNING BODY OF THE CITY OF CHEYENNE IS IN AGREEMENT WITH THE LARAMIE COUNTY BOARD OF COMMISSIONERS AS TO THE JULY 2009 APPLICATION FOR THE COUNTYWIDE CONSENSUS BLOCK GRANT (2009-2010 FISCAL BIENNIUM) TO THE STATE LOAN AND INVESTMENT BOARD" -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] "A RESOLUTION ACKNOWLEDGING RECEIPT OF AND APPROVING THE 'EAST PERSHING BOULEVARD CORRIDOR AND INTERSECTIONS PLAN' PREPARED BY

AYRES ASSOCIATES FOR THE CHEYENNE METROPOLITAN PLANNING ORGANIZATION” -- referred to Public Services Committee (sponsors - Mr. Brown, Ms. Broyles, Mr. Collins, Dr. Rinne, Mr. Pierson).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR OF THE CITY OF CHEYENNE TO EXECUTE A MEMORANDUM OF UNDERSTANDING FOR THE TRADE OF REAL PROPERTY OWNED BY THE CITY OF CHEYENNE TO CHEYENNE HOTEL INVESTORS, LLC, AND CHEYENNE HOTEL INVESTORS, II, LLC, DESCRIBED AS A PARCEL OF LAND SITUATED IN A PORTION OF THE REPLAT OF WESTLAND SUBDIVISION, SAID SUBDIVISION BEING FURTHER DESCRIBED AS A PORTION OF LOT 1, BLOCK ONE, A PORTION OF LOT 1, BLOCK TWO AND A PORTION OF VACATED COUNTY ROAD 51, CONSISTING OF APPROXIMATELY 51,423 SQUARE FEET (ESTIMATED APPRAISED VALUE \$97,703.70), FOR REAL PROPERTY OWNED BY CHEYENNE HOTEL INVESTORS, LLC, AND CHEYENNE HOTEL INVESTORS, II, LLC, TO THE CITY OF CHEYENNE, DESCRIBED AS A PARCEL OF LAND SITUATED IN A PORTION OF LOT 4, BLOCK TWO, GRIFFIN ADDITION; AND AN ADJOINING PORTION OF GOVERNMENT LOT 5 OF SECTION 36, T. 14 N., R. 67 W., 6TH P.M., LARAMIE COUNTY, LYING GENERALLY SOUTH AND WEST OF SAID LOT 4, ALL CONSISTING OF APPROXIMATELY 75,682 SQUARE FEET (ESTIMATED APPRAISED VALUE \$75,901.45), PLUS THE SUM OF \$21,802.25 WHICH REPRESENTS THE DIFFERENCE BETWEEN THE VALUE OF THE LAND TO BE EXCHANGED BETWEEN THE PARTIES, SAID FUNDS TO BE USED FOR DESIGN AND CONSTRUCTION OF AMENITIES FOR PAT GRIFFIN PARK (GENERALLY LOCATED WEST OF WESTLAND ROAD AND EAST OF I-25)” -- referred to Public Services Committee (sponsor - Mr. Valdez).

LEASES/CONTRACTS/LEGAL:

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Shelter Services. Motion (per Consent Agenda) carried. (#5411)

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Control Services. Motion (per Consent Agenda) carried. (#5412)

[CA] Contract to buy and sell real estate between the City of Cheyenne and Rennard Investments, Inc., for property located at the David R. Romero South Cheyenne Community Park. Motion (per Consent Agenda) carried. (#5413)

[CA] Agreement between the City of Cheyenne and Clean Harbors Environmental Services, Inc., for Hazardous Waste Disposal Services, Cheyenne Household Hazardous Waste Facility -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Laramie County School District No. 1 for school resource officers for the 2009-2010 school year -- referred to Finance Committee.

[CA] Cooperative Agreement between the City of Cheyenne and Laramie County Board of Commissioners for the funding of a pavement management inventory -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and IMS Infrastructure Management Services, LLC for Pavement Performance Data Collection -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification #1 to Contract #5357 between the City of Cheyenne and S&S Builders, LLC for additional services for the Carey Avenue Extension Project (SLIB funding)-- referred to Finance Committee.

[CA] Contract Modification #2 to Contract #5045 between the City of Cheyenne and Ayres Associates for preparation and submission of an Emergency Action Plan to the Wyoming State Engineer's Office for the city's Carey Reservoir as part of the Dry Creek - Sheridan Reach Flood Control Improvements Project (~~1% Specific Purpose Sales and Use Tax~~) (Correction: 2007-2010 1% Sales and Use Tax)-- referred to Finance Committee.

[CA] Contract Modification #1 to Contract #5356 between the City of Cheyenne and S&S Builders, LLC for emergency repair of four inlets at East 11th Street and Fremont on the FY 2009 Inlet Repair Project (2007-2010 1% Sales Tax)-- referred to Finance Committee

CONSIDERATION OF BIDS:

[CA] Consideration of Bid ~~#R-29-09~~ #R-28-09 (as corrected) for furnishing two (2) new twin-screw cab & chassis from Peterbilt of Wyoming, Cheyenne, for the Sanitation Department. Motion (per Consent Agenda) carried (amount not to exceed \$207,448.00).

Consideration of Bid #R-31-09 for furnishing three (3) new medium/heavy duty body on chassis transit busses from Intermountain Coach Leasing, Inc., Colorado Springs, CO, for the Transit Department (American Recovery & Reinvestment Act Funding). Mr. Valdez moved to accept the bid submitted by Intermountain Coach Leasing, Inc., Colorado Springs, CO, in an amount not to exceed \$225,869.00, seconded by Ms. Broyles. Comments followed regarding source of funds, and future bus replacements relative to options involving emergency evacuation and wheelchair accessibility areas. Joe Dougherty, Transit Director, advised the buses are being fully funded through Federal stimulus (ARRA) funds; explained wheelchair accessibility for the buses, and noted that Transit drivers receive bus passenger emergency evacuation training. Motion carried. Voting "yes" -- all members of the governing body.

Consideration of Bid #R-33-09 for furnishing three (3) new 2009 Harley Davidson FLHP motorcycles from Maverick Motorsports, Cheyenne, for the Police Department (2007-2010 1% Sales Tax). Pursuant to questions raised at Finance Committee on the item, Police Chief Bob Fecht briefly reviewed discontinuation of a past leasing program offered by the manufacturer, and explained the current program allows for a straight trade-in on the motorcycles, adding that equipment upgrades are additional costs. He noted that due to an invoicing error, Maverick Motorsports has advised they will waive the amount involved in the error. Mr. Valdez moved to accept the bid from Maverick Motorsports, Cheyenne, in an amount not to exceed \$2,385.00,

seconded by Ms. Broyles. Noting that the information provided by Chief Fecht addressed the questions raised at Finance Committee, Mr. Valdez, pursuant to the Committee's recommendation, moved to postpone for two weeks (to July 13, 2009). Motion died due to lack of a second. Upon inquiry, Chief Fecht confirmed the motorcycles are available to the Department at this time. Motion to approve carried. Voting "yes" – all members of the governing body.

[CA] Consideration of Request for Proposal for a contract between the City of Cheyenne, Cheyenne Fire & Rescue Department and Noel Griffith & Associates, architect for professional services for conceptual fire station design, site assessment, program development, project budgeting and promotional services (2007-2010 Optional 1% Sales & Use Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-30-09 for furnishing 10,000 Recycle Refuse Carts for the City of Cheyenne Sanitation Department. (Solid Waste Management Account) -- referred to Finance Committee.

[CA] Consideration of Bid #R-29-09 for furnishing one new Rubber Tired Loader from Honnen Equipment of Mills, WY for the Sanitation Department -- referred to Finance Committee.

APPLICATIONS/LICENSES/PERMITS:

[CA] Bar and grill liquor license application filed with the City Clerk's Office for Suite 1901 CLLC d/b/a Suite 1901, 1901 Central Avenue, Cheyenne, WY. Motion (per Consent Agenda) carried.

[CA] Winery permit application filed with the City Clerk's Office for Suite 1901 CLLC d/b/a The Winery at 1901, 1901 Central Avenue, Cheyenne, WY. Motion (per Consent Agenda) carried.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Acknowledgement of the "2007 Cheyenne Greenway Extension 35% Design" report -- referred to Public Services Committee.

Announcement was made of a change in location for a calcutta to be held in conjunction with the 2009 Cheyenne Frontier Days Rodeo. The calcutta will be held on July 25, 2009 at 5:30 p.m. in a tent located in the Cheyenne Frontier Days headquarters/Old West Museum parking lot.

Announcement was made of a calcutta to be held Saturday, August 1, 2009 beginning at 2:00 p.m. at Alf's Pub, 1622 East 19th Street, in conjunction with Alf's Pub Golf Tournament (Proceeds to benefit local Multiple Sclerosis Society)

Announcement was made of a Public Hearing to be held Monday, July 13, 2009 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Ave., Cheyenne, WY, to receive comments and input on the proposed sale of real property owned by the City of Cheyenne, described generally as the northerly 85 ft. less the easterly 10 ft. of Lot 2, Block One, Bike Trail Addition, Cheyenne, Laramie County, WY, containing approximately 21,532 sq. ft., or 0.49431 acres, more or less (generally

located southeast of east 2nd St. and Russell Ave. Intersection, extending to the west side of Morrie Ave.) to Frontier Refining, Inc., which sale will benefit the economic development of the municipality pursuant to Wyo. Stat. §15-1-112 (b). Estimated appraised value of said property to be sold is \$77,500.00.

OTHER CITY BUSINESS:

John Fafoutakis expressed his concern with potential implementation of a tolling fee on I-80 by WYDOT relative to effects on local users, state residents and truckers, and encouraged the governing body to consider official, collective opposition to a tolling fee.

Rick Parish, Parks and Recreation Director, provided information on the annual SuperDay event to be held June 27th, advising hours were being extended this year and that a free public concert will be held that evening at 7:00 p.m. at the amphitheatre (Lions Park).

Ms. Ash announced that Richard Leslie, Executive Director, Wyoming Epilepsy Association, has been named one of ten national finalists for the 2009 Robert Wood Johnson Foundation Community Health Leaders award, noting this is the first time someone from Wyoming has been named as a finalist.

Ms. Broyles advised Habitat for Humanity Women Build Project located on Messenger Court is looking for volunteers to assist with the housing project.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:40 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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